

Revision

Complete the following statements:

A State is a territorial division in which a community of people lives subject to a _____.

The United Kingdom is a _____ state.

Internal law is the law of a state regulating its _____.

International law is a body of rules that regulates relations between _____ and rights and duties of _____ in their relations to foreign states and with each other.

The historical development of law

Customary law and the first codifications

- **Before the advent of writing, laws existed only in the form of custom.**
- **Custom** – a usage or practice of the people, which, by common adoption and by long and unvarying habit, has become compulsory, and has acquired the force of a law with respect to the place or subject-matter to which it relates. (Black's Law Dictionary)

The code of Hammurabi

- Among the first written codes was that of **Hammurabi, king, and creator of the Babylonian Empire**, dating back to about **1760 BC**. This is one of the earliest examples of a ruler proclaiming laws to his people so that they can know their rights and duties.
- **The Hammurabi code of laws, a collection of 282 rules**, established standards for commercial interactions and set fines and punishments to meet the requirements of justice.
- <https://www.youtube.com/watch?v=oDALXORbtR4>
- **The diorite stele**
- A large stone about 7 feet tall and 2 feet wide
- At its top is a two-and-a-half-foot relief carving of a standing Hammurabi receiving the law—symbolized by a measuring rod and tape—from the seated Shamash, the Babylonian god of justice. The rest of the seven-foot-five-inch monument is covered with columns of chiseled script.
- **„An eye for an eye”**
- Hammurabi’s Code provides some of the earliest examples of the doctrine of “**lex talionis**”, or the laws of retribution, sometimes better known as “an eye for an eye.”
- The Code of Hammurabi includes many harsh punishments, sometimes demanding the removal of the guilty party’s tongue, hands, breasts, eye, or ear. But **the code is also one of the earliest examples of an accused person being considered innocent until proven guilty**.
- The code explicitly mentions about **28 crimes that warrant death**, including robbery, adultery, and casting spells of witchcraft.
- **Examples of punishments**
 - If a son should strike his father, his hands shall be cut off.
 - If a man put out the eye of another man, his eye shall be put out.
 - If any man should strike a man of higher rank, he shall receive sixty blows with an ox-whip.
 - If a builder builds a house for someone and that house collapses killing them, then the builder shall be put to death.

Solon

- An outstanding example of early law-making may be found in the laws of the **Athenian statesman Solon** in the **6th century BC**. Regarded by the ancient Greeks as **one of the Seven Wise Men**, he was granted the authority to legislate in order to assist Athens in overcoming its social and economic crisis.
- Guess the lawmaker: <https://www.youtube.com/watch?v=Ji2RohtkDa4>

Roman law

- **Civil law or *ius civile*** in its broadest sense was **the law of the city of Rome**.
- In a narrower sense it refers to the secular law of Rome, private and public, to the exclusion of sacred law
- Marked by the *Law of Twelve Tables* (the beginning) and Justinian’s codification
- **The Law of the Twelve Tables**
- Historians seem to agree that **early classical Roman law was customary**.
- One of the earliest known codes of laws, **the *Law of the Twelve tables* (c. 450 BC) consisted mainly of Roman custom with certain borrowings from Greek law**. This was a **collection of basic rules**, rather than a comprehensive piece of legislation, yet it came to be regarded as the **starting point of the Roman legal history**.
- https://www.youtube.com/watch?v=clmPMqeQs_I
- **The Twelve Tables were written by the *Decemviri Consulari Imperio Legibus Scribundis* (the 10 Consuls)**, who were given unprecedented powers to draft the laws of the young Republic.
- Originally **10 laws were drafted**; two later statutes were added prohibiting marriage between the classes and affirming the binding nature of customary law.
- **The new code promoted the organization of public prosecution of crimes and instituted a system whereby injured parties could seek just compensation in civil disputes**.
- **The *plebeians* were protected from the legal abuses of the ruling patricians**, especially in the enforcement of debts.
- Serious punishments were levied for theft and the **law gave male heads of families enormous social power (*patria potestas*)**.

Summons

- The bringing of an action began with the plaintiff personally summoning the defendant to follow him before the magistrate.
- The Twelve Tables contained detailed provisions governing this summons:

Table I: Preliminaries to a trial

- 1. If plaintiff summons defendant to court, he shall go. If he does not go, plaintiff shall call witness thereto. Then only shall he take defendant by force.
- 2. If defendant shirks or takes to heels, plaintiff shall lay hands on him. (Ako optuženik pokuša pobjeći, tužitelj ga može prisilno dovući na sud.)
- 3. If disease or age shall be an impediment, he shall grant him a team (for transport); he should not spread with cushions a covered carriage if he shall not so desire

Importance

- The important basic principle of a written legal code for Roman law was established, and *justice was no longer based solely on the interpretation of judges*.
- These laws formed an important part of the foundation of all subsequent Western civil and criminal law.
- The full text of the code has not survived, only some fragments.

Classical jurists

- During the period of the so-called classical **jurists (Gaius, Ulpian, and others)**, between the 1st century BC and the middle of the 3rd century AD, Roman law achieved considerable sophistication.
- After the **collapse of the Western Roman Empire in 476 AD**, the development of Roman law was disrupted in Western Europe.

Justinian's codification

- **Between 529 and 534 AD**, the **Byzantine emperor Justinian** ordered a systematic and comprehensive codification of laws.
- <https://www.youtube.com/watch?v=8Y2pAGcW51Y>
- The collection of laws and legal interpretation developed under Justinian's sponsorship from 529 AD to 565 AD; it is commonly called *Corpus Juris Civilis*
- **It comprises 4 books (Digest, Codex, Institutes and Novellae)**

The first European universities

- Six hundred years after the collapse of the Western Roman Empire, the scholarly study of Roman law revived, **starting in Bologna, the first university in Western Europe (c.1088 AD)**.
- **Between 1100 and 1500 universities spread all over Europe.**

Reception of Roman law in Europe

- **Universities taught civil law and canon law (church law), both based on Roman law**
- **The church had jurisdiction over marriage, wills, and lawsuits between clerics**
- **Civil law was studied and interpreted by scholars (glossators) and commentators (post-glossators)** – Roman law as interpreted by them became the basis of *ius commune* (the common law of Europe)
- England was an exception

National codifications

- By the end of the 18th century the emergent nation states started creating their own national codes
- **The Napoleonic Code of 1804** – addressed to the average citizen of France, clear and understandable language
- **The German Code of 1900** – addressed to the legal profession, abstract and complex legal language

Common law

- **Traceable to Anglo-Saxon times** and forms the basis of English law
- **It was formed from the customs of the people**
- **Common law** (the general law contained in decided cases; unwritten or judge-made law) **means ancient customs, precedents, and books of authority (writings of jurists)**
- Acquired in England early because it had a strong centralised monarchy before most other parts of Europe
- William I – Henry II
- **William the Conqueror**
- The first legal system that became common to the whole country (England and Wales) after the Norman Conquest in 1066
- William the Conqueror decided to set up a central system of government that would include the justice system
- <https://www.youtube.com/watch?v=tc92zC0P0Iw>
- **Curia Regis – the King's court**
- The nobles who had a dispute were encouraged to apply to have the king or his judges decide the matter.
- In addition to the central court, the judges were sent to major towns to decide any important cases. Thus, judges travelled from London all around the country.
- **Henry II**
- Henry II (1133-1189) – Henry's reforms allowed the emergence of a body of common law to replace local customary laws and the disparate customs of feudal and county courts.
- Under Henry II the royal courts extended their jurisdiction at the expense of local and feudal courts.
- **Henry II divided up the country into 'circuits' or areas for the judges to visit.** Similar cases were decided in similar ways, and decisions of royal judges were held in great esteem by local judges. **Lower courts gradually became bound by decisions of higher courts.**
- **Permanent courts were established at Westminster and in the counties, staffed by professional judges and judicial personnel selected largely on legal education, expertise, and merit.**
- Task: Find out more about Henry II!
- https://www.youtube.com/watch?v=cc_cLLBYQJg
- **unprecedented powers** – nevidene ovlasti

- **enforcement of debts** – ovrha, utjerivanje

Words – Unit 4

- **proclaim/promulgate** – proglasiti, objaviti
- **inflict** – zadati, nanijeti, uzrokovati
- **devoid of defences or excuses** – načini/navodi obrane
- **comprise** – uključivati, obuhvaćati, sadržavati
- **disrupt** – poremetiti, onemogućiti
- **(law) syllabus** – nastavni plan i program
- **jurisdiction** – nadležnost
- **brevity, accessibility, comprehensiveness** – kratkoća, dostupnost i sveobuhvatnost
- **aspiration** – težnja
- **clear, concise and readily understandable language** – jasno, sažeto i lako razumljivo
- **It exerted an enormous influence** – Imalo je ogroman utjecaj
- **layperson** – laik
- **outcome** – ishod, rezultat
- **expense** – trošak, izdatak

Revision 1

1. Civil law is based on Roman law. – **TRUE**
2. Before the advent of writing, laws existed only in form of **customs**.
3. The first university in Western Europe appeared in:
 - a. Rome
 - b. London
 - c. Bologna**
 - d. Paris
4. Common law in England was developed under the reign of king **Henry II**.
5. Common law is based on: (choose the answer which is not correct)
 - a. writings of jurists
 - b. precedents
 - c. customs
 - d. statues**
6. Solon was granted with the authority to **legislate**.
7. Among the first written codes was that of **Hammurabi**.
8. The Code of Hammurabi is a very early example of strict **liability**.
9. The Western Roman Empire collapsed in **476 AD**.
10. Roman law codification started with **the Law of the Twelve Tables**.
11. Early classical Roman law was **customary**.
12. The common law is based on **precedents**.

The Rule of Law

Revision

1. **Provide translations for the following phrases:**
 - **to inflict punishment** – provoditi kaznu, dosuditi kaznu
 - **strict liability** – objektivna odgovornost
 - **customary law** – običajno pravo
 - **canon law** – kanonsko/crkveno pravo
 - **civil code** – građanski zakonik
2. **Fill in the gaps with appropriate words: court, country, system, power, issue, law, common law**
 - Before the Norman Conquest the _____ in England was decentralised. Fear of the _____ of local barons led Henry II to create a permanent royal _____ in London called the King's Bench. Judges would travel the _____ hearing civil and criminal cases. The central court in London decided the legal _____ in a case and this would be applied to the facts in the regional courts. In this way a judge-made _____ of law was developed which was common to most parts of the country.
3. **Complete the following statements.**
 - Before the advent of writing, laws existed only in the form of _____.
 - Among the first written codes was that of _____, king and creator of the Babylonian Empire, dating back to about _____ BC.
 - One of the earliest known codes of laws, the _____ (c. 450 BC) consisted mainly of Roman custom with certain borrowings from Greek law.
 - The collection of laws and legal interpretation developed under Justinian's sponsorship from 529 AD to 565 AD is commonly called _____.

The rule of law

- How would you translate the phrase 'the rule of law' into Croatian?
- How would you explain the meaning of the rule of law?

- **vladavina prava**
- **the rule of law state – pravna država**
- The principle that all people and institutions are subject to and accountable to law that is fairly applied and enforced; the principle of government by law.
- **Meaning**
- The rule of law means that **all power in a community should be subject to general rules and both government and governed should respect those rules**
- It is closely connected with '**equality**' in its formal sense. Thus, everyone who falls within a given rule is treated in the same way.
- <https://www.youtube.com/watch?v=0R20U9zkMmg>

Principles (pravični zakoni)

- **The World Justice Project's definition of the rule of law is comprised of the following four universal principles:**
 1. **Accountability** – the government as well as private actors are accountable under the law (**odgovornost**)
 2. **Just Laws** – the laws are clear, publicized, stable, and just; are applied evenly; and protect fundamental rights, including the security of persons and property and certain core human rights (**ispravni, poštteni zakoni**)
 3. **Open Government** – the processes by which the laws are enacted, administered, and enforced are accessible, fair, and efficient
 4. **Accessible & Impartial Dispute Resolution** – justice is delivered timely by competent, ethical, and independent representatives and neutrals who are accessible, have adequate resources, and reflect the makeup of the communities they serve (**dostupno/pristupačno i nepristrano rješavanje sporova**)

Democratic state under the rule of law

- The term '**democratic state under the rule of law**' means a state where citizens elect their own leaders, a state where government itself is bound by the law and helps ensure that the law is respected in the relations between citizens. The law guarantees everyone's individual freedoms against contraventions by government or other citizens.
- **This is possible only if the legislature, executive and judiciary are separate**
- **contravention – kršenje, povreda**

Properties

1. **Conflicts among people** – individual and collective – are governed by means of rules that are impartial and equal for everyone.
2. Rules are enacted by means of a limited government that wields its own functions within the confines of the same rules (supremacy of rules over the rule of men).
3. Compliance with such rules is rooted in a legal and political culture.

Translate into English:

Pravna država je država u kojoj građanin (u slučaju kršenja njegovih prava) ima na raspolaganju pravna sredstva obrane od svih drugih subjekata prava bez obzira na njihov društveni položaj i moć. (Izvor: Hrvatska enciklopedija)

The rule of law state is a state in which a citizen (in case of violation of his rights) has at his disposal legal means of protection from all other subjects of law, regardless of their social status and power.

U skladu s člankom 2. Ugovora o Europskoj uniji vladavina prava predstavlja jedno od temeljnih načela EU-a. Riječ je o ideji da EU-om i svim zemljama EU-a upravljaju zakoni koji su doneseni na temelju uspostavljenih postupaka, a ne diskrecijskih odluka ili odluka koje se donose u pojedinom slučaju.

According to Article 2 of the Treaty on European Union, the rule of law is one of the EU's fundamental values. It is the idea that both the EU itself and all EU countries are governed by a body of law adopted by established procedures rather than discretionary or case-by-case decisions.

Read a petition from the House of Commons to James I (1610), one of the first texts where the expression "the rule of law" was used:

"Amongst many other points of happiness and freedom which your majesty's subjects of this kingdom have enjoyed under your royal progenitors, kings and queens of this realm, there is none which they have accounted more dear and precious than this, to be guided and governed by the certain rule of the law which giveth both to the head and members that which of right belongeth to them, and not by any uncertain or arbitrary form of government."

Bill of Rights

- Bill of Rights is an **Act of the Parliament of England** that deals with constitutional matters and **sets out certain basic civil rights**
- Bill of Rights was the result of the long 17th-century struggle between the Stuart kings and the English people and Parliament
- It was an „Act Declaring the Rights and Liberties of the Subject and Settling the Succession of the Crown” and **it was ratified on 16th December 1689**

Glorious revolution

- **King James II declared that he would rule without a Parliament**
- The bishop of London and a group of parliamentarians (6) secretly invited the ruler of the Netherlands William of Orange to bring the army and overthrow the King
- When he landed, the English Army deserted James and he fled to France
- Those events of **1688-89** were called **Glorious Revolution or Bloodless Revolution**
- <https://www.youtube.com/watch?v=R6GPbImtO8k>
 1. No laws were to be made or suspended unless Parliament approved
 2. No taxes were to be levied without the consent of Parliament
 3. Trials must have juries
 4. It is lawful to keep arms
 5. Elections to Parliament must be free

Significance

- Along with **Magna Carta, the Petition of Right, the Habeas Corpus Act 1679 and the Parliament Acts 1911 and 1949** work as the **foundation of the uncodified British constitution**
- **Along with the Act of Settlement 1701, the Bill of Rights is still in effect in all Commonwealth realms**
- The Bill of Rights 1689 was one of the inspirations for the United States Bill of Rights
- ***Read the extract from the Bill of Rights (1689) on p. 29-30. Complete the following table listing the rights and prohibitions declared in the Bill of Rights.***
- And thereupon the said Lords Spiritual and Temporal and Commons, pursuant to their respective letters and elections, being now assembled on a full and free representative of this nation, taking into their most serious consideration the best means for attaining the ends aforesaid, do in the first place (as their ancestors like case have usually done) for the vindicating and asserting their ancient rights and liberties declare: ...

Rights of Parliament

- the requirement for regular parliaments
- free elections
- freedom of speech in Parliament
- the right to petition the monarch should be without fear of retribution
- the freedom of speech and debates or proceedings in Parliament should not be impeached or questioned in any court or place out of Parliament

Prohibitions

- Laws should not be dispensed with or suspended without the consent of Parliament
- No taxes should be imposed without the authority of Parliament
- No standing army may be maintained during peace-time without the consent of Parliament

Tasks

- Find all the collocations containing the word 'law' and explain their meaning**
 - To suspend the laws – obustaviti zakone
 - Executions of laws – provedba zakona
 - Dispense with laws – ukidanje zakona
 - Against law – protuzakonito
 - Allowed by law – dopušteno zakonom
 - To strengthen and preserve the laws – ojačati i očuvati zakone
- Find legal doublets in the text**
 - free and clear
 - kingly/royal/regal
 - null and void
- Find modals used in the text and explain their meaning**
 - Shall be granted – zagarantirano je
 - May have – mogu imati
 - Ought to be free – slobodni su
 - Ought not to be impeached or questioned – ne bi trebao biti predmet opoziva
 - Ought not to be required – nisu potrebne
 - Ought to be duly impanelled and returned – moraju biti pravilno izabrani (imenovani) i otpušteni
 - Ought to be freeholders – moraju biti slobodni vlasnici
 - Ought to be held frequently – treba se često održavati

Match the words with their definitions:	
1. aforesaid	Said earlier
2. bail	Payment made to a court to release an arrested person
3. commitment	An order for sending someone to prison
4. consent	Agreement or permission
5. dispense with	Not to use something
6. execute	To carry out
7. forfeiture	The act of taking away a property or right as a punishment
8. freeholder	Someone who has the absolute right to hold land or property for an unlimited time without paying rent
9. grant (v.)	To agree or allow
10. grievance	A complaint
11. impanel	To choose and swear in jurors
12. impeach (hist.)	To charge a person with treason before Parliament
13. levy	To demand payment of a tax or an extra payment and to collect it
14. prerogative	A special right
15. pursuant to	Relating to or concerning
16. suspend	To stop something happening for a period of time

Words – Unit 4, part two

- **vindicate** – braniti, tražiti, dokazivati, opravdavati
- **...for vindicating and asserting their ancient rights and liberties declare...** -

- **levying money** for or to the use of the Crown by pretence of prerogative without grant of Parliament... – prikupljanje za ili u korist Krune pod izgovorom prerogativa bez odobrenja Parlamenta
- **forfeitures of particular persons** – oduzimanje imovine određene osobe
- **petition** (v. and n.) – zahjev, podnesak, molba/ uložiti zahtjev, podnijeti molbu
- **bail** – jamčevina
- **impose (a fine/ an obligation)** – odrediti kaznu /nametnuti obvezu
- Porotnici moraju biti pravilno imenovani i otpušteni, a porotnici koji prolaze kroz slučajeve izdaje moraju biti slobodni vlasnici.
- Kako bi se zadovoljile sve pritužbe, kao i za izmjene, jačanje i očuvanje zakona, Parlament se treba često sastajati.
- **void** – ništav
- **null and void** – ništetan i nevažeći
- **grants and promises** – dozvole i obećanja
- **redress a grievance** – riješiti žalbu
- **limited government** – ograničenje ovlasti vlasti, svako tijelo ima ograničene ovlasti
- **rooted** – ukorijenjeno
- **wield** – obavlja
- **within the confines of the same rules** – unutar istih pravila
- **supremacy of rules over the rule of men** – prevlast zakona (vladavina pravila) nad moći ljudi
- **according to/pursuant to/in accordance to** – u skladu s
- **treaty on the EU** – ugovor o EU
- **discretionary decision** – diskrecijska odluka (diskrecijski – koji postupa prema vlastitom nahođenju)
- **case-by-case decision**
- **assembly** – skupština, okupljanje
-

Revision 2

1. The totality of Islamic law is known as **Shari'a**.
2. Civil law system is based on Roman law. **TRUE**
3. Civil law systems place emphasis on **statutes and general legal principles**. (ostali ponuđeni odgovori: opinion of jurists, judicial decisions)
4. Common law is based on **precedents, customs and writings of jurists**. (netočan odgovor – statutes)
5. Translate the following phrases. Mark your translations with appropriate numbers.
 - 1) **amend or repeal rules** – izmjeniti/dopuniti zakon i opozvati zakon
 - 2) **statutory law** – kodificirano ili pisano pravo
 - 3) **case law** – sudska praksa
 - 4) **civil law system** – građansko pravo
 - 5) **binding decisions** – obvezujuće odluke
6. A code may be defined as a system or collection of laws. **TRUE**
7. Select the features typical of civil law systems:
 - ☐ a. case law as a source of law
 - ☒ b. codified constitutions
 - ☐ c. judges create new laws
 - ☐ d. adversarial procedure
 - ☒ e. laws created from general principles
 - ☒ f. legislation as a source of law
 - ☐ g. laws created from specific cases
8. Which of the following features belongs to the civil law? Choose the correct answer.
 - ☐ a. importance of customs
 - ☒ b. importance of codes
 - ☐ c. the role of judges generally
 - ☐ d. importance of judicial decisions
9. Customary law used to be important in the past, but it is not in modern times. **FALSE**

Legal systems of the world

What is a legal system?

- the laws and the people and institutions that make them work in a particular country (Longman Business Dict.)
- Legal system refers to a procedure or process for interpreting and enforcing the law. (USLegal)
- the organizations and people in a country or area who work in the area of law (Cambridge English Dict.)

- a system for interpreting and enforcing the laws (AKD Law)

Five factors that create a legal system (Hart)

1. Rules that forbid certain conduct and rules that compel certain conduct on pain of sanctions.
2. Rules requiring people to compensate those whom they injure.
3. Rules stating what needs to be done in certain 'mechanical' areas of law, such as making a will or a contract.
4. A system of courts to determine what the rules are, whether they have been broken and what the appropriate sanction is.
5. A body whose responsibility is to make rules and amend or repeal them when necessary.

Basic elements for distinguishing legal systems

- sources of law
- legal principles and concepts
- historical background

What makes a legal system?

1. sources of law and their hierarchy
2. law-making institutions (and their hierarchy)
3. law-enforcing institutions and their powers (mostly courts)
4. substantive and procedural principles and concepts
5. the organisation of the legal profession (the judiciary, the lawyers)

National legal systems

- each state has its own legal system
- characteristics of these systems are highly variable
- some legal systems are organized on the basis of a **written constitution** (e.g., **the USA**), some have constitutional systems not resulting from a single written text – **unwritten constitution** (e.g., **the UK, Israel**), and some do not have an explicit constitutional framework.

Sources of the law

- statutes, customs, judicial decisions, legal principles, the opinions of jurists

Two major Western legal traditions

- Civil law (continental law) system – kontinentalno pravo
- PAZI – civil law – građansko pravo
- Common law system (Anglo-American) – opće ili anglosaksonsko p., razvilo se s vremenom, sudskim presudama

Civil law v. Common law

	CIVIL LAW	COMMON LAW
MAIN SOURCE OF LAW	legislation (codified law)	case law (precedents)
LAW-MAKING BODIES	legislative bodies	the judiciary
CREATION OF LEGAL PRINCIPLES	from general and abstract; deductive reasoning: applying a general principle to a particular case	from specific and individual; inductive reasoning: legal principles derived from individual cases
ROLE OF THE JUDICIARY	interprets and applies the law	creates the law (precedents)
TYPE OF LEGAL PROCEDURE	inquisitorial	adversarial

Inquisitorial legal procedure

- the role of the judge:
 - to establish facts
 - asks questions in order to get to the truth
- the role of the legal representatives:
 - to ask additional questions to point to what they think might be relevant details in the case

Adversarial procedure

- the role of the parties:
 - to provide evidence and convince the judge and/or jury of their version of the truth
- the role of the jury:
 - to establish facts based on the presented evidence
- the role of the judge:
 - to make sure procedure is followed and to make a ruling applying the law to the facts established by the jury or him/herself

Civil law systems

- 60% of the world
- countries that have inherited the Romano-Germanic traditions
- concepts and rules derived from Roman law – based on Roman law
- systematic, authoritative, and comprehensive codifications
- the most influential codes: German BD and French Code Civil
- In a civil law system, a judge merely establishes the facts of a case and applies remedies found in the codified law.

Common law systems

- most common law systems **do not have codes**
- great importance is given to the decisions of judges to be followed in later, similar cases (**precedents**)

- **hierarchy of courts – the decisions of higher courts are binding on lower courts**, and much of the law is left to the courts to develop
- **judges rely on precedents** to interpret laws and apply them to individual cases
- In certain common law countries, courts (such as the **US Supreme Court**) have the ability to strike down laws that were passed by legislators if those laws are deemed unconstitutional in violation of federal law.
- In the United Kingdom, **the concept of parliamentary sovereignty means that legislation can only be amended or revoked by Parliament, not the courts.**
- **sovereignty – suverenitet**

New trends

- the increasing contemporary influence of international agreements and legal sources
- e.g., **EU** – the national laws of EU member states are increasingly shaped by the need to comply with the requirements set out by EU law.
- international agreements with a potentially universal scope determine to a large extent the contents of national law (treaties, conventions etc.)

Answer the following questions:

1. What constitutes a legal system?
2. What is a source of law?
3. What are the major sources of law?
4. How would you define case law?
5. How can we define a precedent?
6. Which type of legal reasoning is deductive: civil law or common law?
7. Which type of legal reasoning is inductive: civil law or common law?
8. Why have civil law and common law systems come closer together recently?
9. What is the impact of international law on national legal systems?

Match two parts of the following sentences:

Case law is	... law established by precedents
Code is	... an official set of laws or regulations
Consolidation is	... the act of bringing together various Acts of Parliament which deal with one subject into a single Act
Enactment is	... the action of making a law
Precedents are	... decisions of courts in earlier similar cases
Statute is	... an established written law, especially an Act of Parliament

Fill in the missing words: academic, authority, judgment, judicial, legal, opinions, precedents, reports

Judgments in common law vs. civil law

The nature of _____ in French law could not be further from its English counterpart. Whereas some of the leading English _____ decisions contain the reasoned _____ of judges, distinguishing and applying a long list of _____ and stretching through over 100 pages in the law _____ French judgments, even emanating from the Cour de Cassation, rarely amount to two pages. They are in the form of a syllogism: they set out the facts, the _____ issue and the conclusion, usually without citing any previous case _____. Because judgments are so short, they are normally published accompanied by _____ commentary.

- **Amend rules** – izmjene i dopune
- **Repeal rules** – opozvati zakone
- **English law – law of England and Wales**
- **Croatia** – the beginning of our Constitution explicitly says what kind of a state Croatia is

„Republika Hrvatska jedinstvena je i nedjeljiva demokratska i socijalna država.“ – unitary and indivisible (because of the historical aspect) state

„U Republici Hrvatskoj vlast proizlazi iz naroda i pripada narodu kao zajednici slobodnih i ravnopravnih državljana.“

- **article 2.** – which are the main functions of the Parliament
- on the first place is the economic (**budgets and taxes**)
- **article 3.** – which are the highest democratic principles
- **statues – zakoni (acts)**
- **statute law** – pisano ili kodificirano pravo
- **books of authority**
- **case law** – sudska praksa
- **counterparts** – pandan
- **penchant** – sklonost
- **obscure** – nejasno
- **consolidation** – objedinjenje, spajanje (zakona u jedan)
- **to enunciate** – izraziti, proklamirati
- **emanating** – proizlazi
- **consideration** – ugovorno pravo/ uzimanje u obzir/ protučinidba (arh.)
- **usluge i protuusluge moraju biti označene u ugovoru**
- **piecemeal** – nesustavno, malo po malo

Other legal traditions

Legal systems in the world

- It is possible to classify national legal systems into several groups, based on the existence of common characteristics, legal concepts, and traditions.
- There are **generally considered to be 5 legal systems in the world today: civil law, common law, customary law, religious law, and mixed legal systems.**

Civil law systems

- **origin in the Roman legal tradition**
- vary widely, both in procedure and substantive law
- comprehensive, frequently updated legal codes

Classification of legal systems

- There are several basic elements which are used for the purposes of including such systems in one of the groups into which the world's legal systems are classified.
- **The first group of elements: sources of the law** – what constitutes law in each legal system (**statutes, customs, judicial decisions**, generally accepted **legal principles**, the **opinions of jurists** etc.)
- The various groups of legal systems place different emphasis on these sources: **civil law systems place more emphasis on statutory law**
- The Anglo-American legal system gives a broader role to **case law**, which is considered to be the source of many of its rules, and has developed complex technical instruments to apply, interpret and modify such case law.
- **A second group** of distinguishing elements consists of the **legal concepts** and terminology used by each system.
- This is not a matter of language, but rather of ideas.
- **Concepts such as *equity*, or *consideration*, have a technical sense under common law which has no exact equivalent in other legal systems.**
- On the other hand, **concepts such as *juridical act*, *juridical fact* or *business association* have a characteristic and central meaning in civil law systems but are non-existent or irrelevant in other systems.**
- **A third group of characteristics** used to classify legal systems is based on the **historical development of each national law**.
- Historically, civil law systems have been based on Roman law and on the codes enacted in continental Europe
- common law systems are based on English common law
- legal systems from the Muslim tradition are based on Islamic law, etc.

Customary law

- to constitute custom, the practices involved require something more than mere usage or habit:
- **custom** – a usage or practice of the people which, by common adoption and by long and unvarying habit, has become compulsory and has acquired the force of law with respect to the place or subject-matter to which it relates (Black's Law)
- **customs need to have a degree of legality**
- based on **patterns of behavior** (or customs) that have come to be accepted as legal requirements or rules of conduct within a particular country
- the laws of customary legal systems are usually **unwritten** and are often dispensed by elders, passed down through generations

Mixed legal systems

- mixed legal systems are **legal systems where 2 or more legal systems work together**
- customary law continues to play an important role, especially in jurisdictions with mixed legal systems such as those in some African countries

Religious law

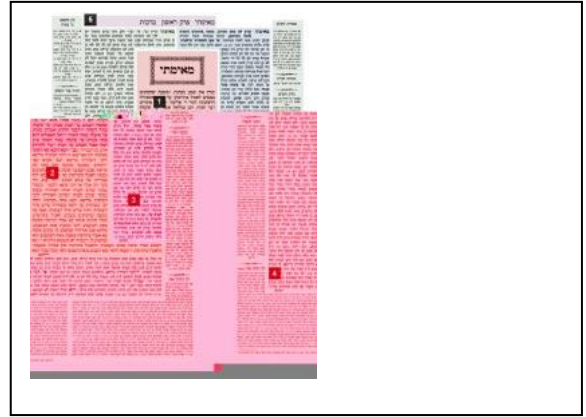
- Legal system using a religious system or document as a legal source, although the legal methodology varies
- No legal system can be properly understood without investigating its religious roots.
- For example, **the Roman Catholic Church has the longest, continuously operating legal system in the Western world.**
- The rise of **secularism** has not completely extinguished the impact of religious law. (sekularizacija)
- Nevertheless, one of the hallmarks of Western legality is the separation between church and state.
- While a number of prominent **religious legal traditions co-exist with state systems of law, some have actually been adopted as state law.**
- The most significant are **Talmudic, Islamic and Hindu law.**
- **All three derive their authority from a divine source:** the exposition of religious doctrine as revealed in the Talmud, Koran and Vedas respectively.

Talmudic law

- Jewish people have maintained their identity for thousands of years, and Talmudic law has played a very large part in the process.
- It represents **one of the oldest legal traditions in the world.**
- It is rooted in the word of God as revealed to **Moses** and found in **the first five books of the Hebrew Bible** which constitute the **Torah**, meaning '**divine wisdom**'.
- Talmudic law had a significant impact on Western commercial, civil, and criminal law.

The Talmud – a page

1. **Mishnah** – ancient oral law
 2. **The Gemara** – ‘to study and to know’
 3. **Rashi** – Rashi’s words; on the margin
 4. **Other commentaries** – by other rabbis from the 10th century onwards
 5. **Pages and chapters**
- <https://www.youtube.com/watch?v=e43Ah19Dsel>



Islamic law

- Islamic law is **based on the teachings of the Koran/Quran** (literally: 'the Reading'), as well as the **Sunnah and Hadith** - the deeds and sayings of the Prophet Muhammad.
- Where an answer cannot be derived directly from these, religious scholars may give rulings as guidance on a particular topic or question.
- The totality of Islamic law is known as the **Shari'a**, which means 'the way or path to follow'; it is the manifested will of the Almighty which does not depend on the authority of any human lawmaker
- **Shari'a acts as a code for living** that all Muslims should adhere to, including prayers, fasting and donations to the poor.
- Islamic law is **immutable**, for it is the law revealed by God – society must adapt itself to the law rather than generate laws of its own as a response to changing circumstances.
- Since Islamic law reflects the will of Allah rather than the will of a human lawmaker, it covers all areas of life and not simply those which are of interest to the state or society.
- **Criticizing or denying any part of the Quran, Allah or Muhammad is punishable by death.**
- **Shari'a dictates death by stoning, beheading, amputation of limbs, flogging, even for crimes such as adultery.**

Shari'a and women

- **the most intrusive and restrictive law, especially against women**
- **prioritizes punishment over rehabilitation (Draconic punishments)**
- **UAE, Egypt, mostly Middle east**
- **Examples:**
 1. A woman can have 1 husband, who can have up to 4 wives.
 2. A male convicted of rape can have his conviction dismissed by marrying his victim.
 3. A woman or girl who has been raped cannot testify in court against her rapist(s).
 4. A man can marry an infant girl and consummate the marriage when she is 9 years old.
 5. A man can beat his wife.
 6. A woman cannot drive a car.
 7. A woman cannot speak alone to a man who is not her husband or relative.
 8. The testimony of a woman in court is half the value of a man.
 9. A female heir inherits half of what a male heir inherits.

Hinduism

- The classical Hindu law before British colonization rested neither on formal laws laid down by secular rulers nor yet on court decisions; essentially it rested on the works of scholars.
- It is linked to the divine revelation of the **Vedas**, which contained comprehensive and systematic descriptions of the customary Hindu law.
- **The primary sacred texts – the Vedas – were composed around 1500 B.C.** This **collection of verses and hymns was written in Sanskrit** and contains revelations received by ancient saints and sages. (objave, mudraci)
- Unlike other religions, Hinduism has no one founder but is instead a fusion of various beliefs.
- Hinduism postulates the notion of **Kharma**: goodness and evil on earth determine the nature of one's next existence.
- 'what goes around, comes around', 'as you sow, so shall you reap'

Hindu law

- **Hindu law refers to the system of personal laws (marriage, adoption, inheritance, etc.),** traditionally derived from Hindu texts and traditions, that shaped the social practice of Hindu communities.
- Hindu law, especially in relation to family law and succession, **applies to around 900 million individuals, mostly living in India.**

Chinese law

- **founder: Confucius**
- **confucianism** – religion and philosophy
- **the concept of li** – ideal social order; harmony; proper behaviour
- importance of ceremony
- a ruler should adhere to the highest moral values
- **no formal laws**
- <https://www.youtube.com/watch?v=tUhGRh4vdb8>
- **Traditional Chinese society**, in common with other Confucian civilizations, **adopted the concept of 'li'**, or appropriate behaviour, which is understood as a set of culturally and socially valued norms that provide guidance to proper behaviour that will ultimately lead to a harmonious society.

- As **Confucius rejects the general use of formal laws to achieve social order**, the willing participation by citizens to search for commonly accepted, cooperative solutions is vital to his theory.
- **In contrast to Confucius' li-based theory, legalism advocates the use of codified laws and harsh punishment to achieve social order.**
- **This is due to the legalists' belief that all human beings are born evil and self-interested.**
- Therefore, if left unrestrained, people would engage in selfish behaviour which will lead to social unrest.
- To force people to behave morally, the only way is to publicly promulgate clearly written laws and impose harsh punishments

Complete the table providing basic information about each of the legal traditions

Customary law	
Canon law	
Talmudic law	
Islamic law	
Hinduism	
Chinese law	

State Governance and Administration of Justice

Revision

1. Complete the following:

The system of codified law that prevails in continental Europe, South America, and elsewhere is known as _____, in contrast to the _____ system that applies in England, former British colonies, the United States, and most of Canada.

2. Match the collocations:

- Forbid conduct
- Make a will
- Compensate for injury
- Create a legal system
- Determine a sanction

3. Answer the following questions:

- What are the major sources of law?
- How would you define case law?
- How can we define a precedent?
- What do civil law systems rely on?

4. Translate the following:

- **repeal a rule – opozvati zakon**
- **statutory law – kodificirano pravo**
- **case law – sudska praksa**
- **civil law countries – zemlje koje primjenjuju građansko pravo**
- **binding decision – obvezujuća odluka**
- **applicable principles – primjenjiva načela**

Part One: Separation of Powers

John Locke

- **John Locke (1632-1704)** studied the bloody civil wars in 17th-century England, and concluded that what was needed was a division among political institutions.
- It was a mistake to entrust government functions to a single department: it may be too great a temptation to seize power, for the same persons who have the power to make laws to have also in their hands the power to execute them.
- His idea was to have legislative power divided between king and Parliament

Separation of powers

- **The great political philosopher Montesquieu coined the phrase the 'separation/distribution of powers'**
- In *The Spirit of the Laws (1748)*, Montesquieu described the various forms of distribution of political power among a legislature, an executive, and a judiciary.
- *"Government should be set so that no man need be afraid of another"*

Montesquieu

- *"When the legislative and executive powers are united in the same person, or in the same body of magistrates, there can be no liberty; because apprehensions may arise, lest the same monarch or senate should enact tyrannical laws, to execute them in a tyrannical manner."*
- *"Again, there is no liberty, if the judiciary power be not separated from the legislative and executive. Were it joined with the legislative, the life and liberty of the subject would be exposed to arbitrary control; for the judge would be then the legislator. Were it joined to the executive power, the judge might behave with violence and oppression."*
- Montesquieu, *The Spirit of Laws*, pp. 151–52

Elements of the state

- **The executive: Government** (Government executes the law)
- **The legislative: Parliament** as the highest legislative body (Parliament makes the law)
- **The judiciary: the system of courts** (courts enforce, apply, and interpret the law)

The doctrine of the separation of powers

- According to the doctrine of the separation of powers, each branch of government has different functions, but each uses its power to control the limits of the others. Conversely, within the limits of its powers, each branch should be independent of the others.

The legislative branch

- carried out by a **legislature**, which may bear a name such as parliament or assembly
- a legislature typically consists of a varying number of representatives elected by the citizens of the state

Unicameral/bicameral

- unicameral or bicameral legislatures, i.e., **one or two legislative chambers**. The lower chamber is commonly the directly elected one, while the upper chamber may be elected by the lower, it may represent different administrative or geographical regions of the state, or have an entirely different setup.
- **Parliament – 2 Houses or Chambers**
- **House of Lords (UK)/ House of Representatives (USA) – Gornji dom, Lord Spiritual, Lord Temporal, Life peers/ Senat, 2 senatora iz svake savezne države**
- **House of Commons – Donji dom – supreme legislator**

Principal tasks of the legislative branch

- enacting law by examining and debating legislative proposals (put forward by the executive branch, individuals, or special interest groups) and finally approving them (voting)
- **approving the state budget and taxation**
- **controlling (scrutinizing) the work of the executive branch**
- **scrutiny – nadzor, kontrola**

The executive branch

- The executive branch is **the one that directly governs the country**. It carries out this task by **designing and implementing policies in the various areas of life of a state**.
- The executive draws up and implements development strategies, which involve allocating state budget funds to certain activities.
- The highest executive body in terms of power is usually a group of persons known collectively as the **government** in the narrow sense – a number of ministers headed by the prime minister
- Politike ili mjere sadržane su u strateškim dokumentima (npr. “Nacionalni program za...”)
- Vlada donosi uredbe sa zakonskom snagom i pravilnike

Government

- **Government** – a body which exercises the executive powers in conformity with the Constitution and law
- *“The Government shall pass decrees, introduce legislation, propose the state budget, decide in cases of conflict of jurisdiction between government institutions, give answers to representatives’ questions and adopt strategies of economic and social development.”*
- **u užem smislu – Vlada**
- **u širem smislu – vlast**
- **Kabinet je u RH isto što i Vlada**
- **uži saziv (UK) – 23 memberes, Government has more than 100 members**
- **government – vlada/ uprava ili upravljanje**
- **governance – vladavina**
- **lat. *ultra vires* – prekoračanje ovlasti, beyond our powers**
- **to make/ pass/ enact/ legislate laws**
- **arbitrary – proizvoljno**
- **apprehension – strah, bojazan**

The judicial branch

- The judicial power is embodied in the system of courts
- **Hierarchy of courts**; the Supreme Court as the last instance for appeals within the national court system
- **municipal (općinski), county (županijski), the Supreme court (Vrhovni sud)**
- This branch **enforces the law in court and it must be independent from the other two branches**
- *Judges are often prohibited from engaging in political activity as their impartiality in adjudication is a prerequisite for fair and consistent application of the law.*
- Sucima se često zabranjuje političkom aktivnošću jer je njihova nepristranost u donošenju presuda/presuđivanju preduvjet za pravičnu i dosljednu primjenu zakona.

Judicial appointments (imenovanje, odabir sudaca)

- Unlike the legislative and executive branches, **the judicial branch is not usually subject to elections by the people**, although it is not uncommon for judicial appointments for higher courts to be subject to approval by the legislature.

Checks and balances (Mehanizam uzajamne kontrole triju grana vlasti)

- A government in which no person or branch of government could become all-powerful
- Powers are divided among the legislative, executive and judicial branches of government
- Even though the powers may seem to be distinct and perfectly separate, in most systems they overlap

- Each group can balance and check other's powers
- **facilitate – promicati**

Decide whether the following statements are true (T) or false (F). If false, provide the correct information.

1. The legislative branch enforces the law.
2. Parliaments create strategies and development projects.
3. The Government proposes laws to Parliament, which has the final word in their enactment.
4. Citizens cast their vote in elections and choose the Prime Minister.
5. Judicial appointments are sometimes confirmed by Parliaments.
6. Parliaments typically confirm international treaties so that they can become law of the state.
7. The executive has no law-making power whatsoever.
8. The Cabinet can abolish laws made by Parliament.

Match the verbs in the left column with the nouns in the right column. Multiple matches may be possible for each verb.

apply	(a, the) law
confirm	a decision
devise	a judicial appointment
enact	a legislative proposal
enforce	an order
implement	a policy
invalidate	a strategy
propose	a treaty
put forward	the members of the government
ratify	the state budget

Answer key

- apply a/the law
- confirm a judicial appointment, the members of the government, the state budget
- devise a policy, a strategy
- enact a law
- enforce a/the law, a decision, a policy, a treaty
- implement a policy, a strategy
- invalidate a decision
- propose a law
- put forward a legislative proposal
- ratify a treaty

Decide which branch does the activities from the previous exercise and list them under the appropriate headings. Some activities can be sorted under multiple headings.

EXECUTIVE	LEGISLATIVE	JUDICIAL
confirm a judicial appointment, a treaty, the members of the government, enact a law	design/devise a policy, a strategy, enforce a/the law, implement a policy, a strategy, propose a law	apply a/the law, apply a decision, enforce a/the law, invalidate a decision

Rewrite the following sentences replacing the underlined expressions with expressions from the text.

1. The law-making body makes laws that all citizens must act in accordance with.
2. The Croatian Parliament is a one-chamber legislature.
3. Parliaments examine closely and critically the work of the executive.
4. Presidents or other representatives can sign international agreements, but they are normally confirmed by the legislative body.
5. The government in the narrow sense consists of heads of government departments.
6. State budget funds are distributed to development projects that are planned to be put into practice.
7. Judicial independence in making decisions in disputes is of the highest importance.
8. Some courts can abolish laws or parts thereof.

Complete the chart with appropriate word forms:

NOUN	VERB
enactment	enact
enforcement	enforce
scrutiny	scrutinize
abolition, abolishment	abolish
ratification	ratify
proposal	propose
appeal	appeal

Part Two: Resolving Disputes

Administering justice

- The judicial branch of government administers justice within a number of systems, depending on the type of dispute.
- The principal line is drawn between the civil and criminal law, which is enforced through a system of civil and criminal courts respectively.

Prosecutor v. claimant

- While in criminal law the prosecutor (the state) seeks to punish a criminal offender, civil justice deals with resolving conflicts or disputes between natural and legal persons concerning their private interests. Such proceedings are initiated by the claimant and generally do not involve the public interest.

Civil justice

- Civil justice includes family justice, administrative, civil, and commercial justice systems.
- The family justice system is set up to help individuals resolve matters such as divorce, child custody, etc.
- Administrative justice deals with administrative disputes initiated by natural or legal persons concerning decisions reached in administrative procedures by state authorities, such as building permits, tax ordinances, or licences to practice a profession.
- Strictly civil justice concerns various disputes between individuals or legal entities regarding harm, breach of contract, product liability, etc.
- Disputes between and/or concerning business organisations and commercial activities fall within the domain of commercial law.

	CRIMINAL	CIVIL
PARTIES	1. Prosecutor (usually the state) 2. Defendant	1. Claimant (injured party) 2. Defendant
PURPOSE	- To prosecute and punish an offender for a crime committed - To prove GUILT	- To obtain a remedy for a wrong committed - To establish LIABILITY
STANDARD OF PROOF	Beyond reasonable doubt	Balance of probabilities
REMEDIES	1. Non-custodial sentences: fine (paid to the state), community service 2. Custodial sentence (imprisonment)	1. Damages (compensation for damage/injury/loss, paid to the claimant) 2. Injunction (prohibition of harmful conduct)
		ADR

ADR

- Resolving a case in court is subject to strict and detailed procedural rules. It usually entails considerable costs of litigation (court and lawyer's fees) and tends to be time-consuming.
- litigation – praničenje koje uključuje sudski postupak
- As an alternative to litigation, where a court adjudicates and enforces a solution, a number of alternative dispute resolution formats (ADR) have developed in order to achieve dispute resolution in a more collaborative way.
- If consumers have a complaint about a good or service they have bought, instead of going to court, they can choose Alternative Dispute Resolution (ADR).
- The term ADR includes all the ways of resolving a complaint which do not involve going to court.
- Typically, consumers ask a neutral third party to act as an intermediary between them and the trader; this neutral third party is called an ADR entity.
- The ADR entity can then suggest or impose a solution, or simply bring the two together to discuss how to find a solution.
- This is also known as “mediation”, “conciliation”, “arbitration”, “ombudsman” or “complaints’ board”.

Negotiation

- An informal approach between the parties themselves or their lawyers
- Completely private
- The quickest and cheapest method of resolving a dispute
- negotiation – pregovaranje

Mediation/conciliation

- Mediation is a process in which a neutral person (the mediator) helps the parties reach a compromise solution to their dispute; the parties work out a solution themselves
- mediation – medijacija/posredovanje
- In conciliation the mediator (or conciliator) has power to suggest grounds for compromise and the possible basis for settlement
- conciliation – mirenje

Arbitration

- The voluntary submission by the parties of their dispute to the judgment of an arbitrator who is neutral
- The agreement to go to arbitration can be made before a dispute arises or after the dispute has arisen
- The decision by the arbitrator is called an award. It is binding on the parties and can be enforced through the courts if necessary.
- arbitraža – stranke se ne mogu žaliti na dano rješenje

Read the text about ADR (pp. 46-47) and find words/expressions that mean the same as the following:

- go-between (n.) _____
- conducted _____
- inform _____
- resolve (a dispute) _____
- ask for reparation _____
- resulting (from) _____

Unit 6 – words

- to be vested in power – imati ovlasti nad nečim

- to seize power – preuzeti
- abuse of power – zlouporaba vlasti
- abrogate provisions – opozvati odredbe
- design a policy – kreiranje/osmišljavanje politika ili mjera
- vote of no confidence – izglasati nepovjerenje
- administering justice – dijeliti pravdu
- to enforce law – provoditi zakon
- claimant ≠ prosecutor
- petitioner – podnositelj zahtjeva
- natural person – fizička osoba
- legal person – pravna osoba
- administrative disputes – upravni sporovi
- beyond reasonable doubt – bez ikakve sumnje
- reasonable person
- reasonable force – nužna/opravdana sila (koja mora biti proporcionalna onome čemu se npr. policajac suprotstavlja)
- remedy – pravno sredstvo
- injunction – sudski nalog ili zabrana
- balance of probabilities
- custodial sentence – zatvorska kazna
- društveno korisni rad

Revision: Units 4 – 6

1. True or false?

The judicial branch enacts the law.



Točno



Netočno

2. Translate following sentences:

a) Legislation may include obligations, prohibitions and permissions.

Zakonodavstvo uključuje obveze, zabrane i dopuštenja.

b) First-instance civil courts resolve disputes between individuals.

Građanski sudovi prvog stupnja rješavaju sporove između pojedinaca.

c) Civil law systems place more emphasis on statutory law.

Kontinentalno pravo stavlja veći naglasak na kodificirano pravo.

3. Choose the answer which is not correct.

Common law is based on:



a. writings of jurists



b. customs



c. statutes



d. precedents

4. Match the verbs with the appropriate noun phrases. Two nouns are too many.

a) to overstep powers

b) to ratify a treaty

c) to cast a vote of no confidence

d) to invalidate a law

e) to allocate the state budget

f) to govern a state

g) to debate legislative proposals

h) to exercise legislative power

5.

a) The government proposes the state budget and the parliament adopts it.

b) Some countries have a constitutional court which can abolish provisions of law if it finds them to be unconstitutional.

c) Commercial disputes involve legal persons, while civil concern natural persons.

d) In criminal trials, the jury reaches a verdict of guilty or not guilty and the judge passes a sentence.

e) The judicial branch enforces laws in the event of dispute or prosecution.

f) In family trials, the court can decide about custody of children.

g) Judges must be impartial, so they may not engage in politics.

acquits enacts prosecutor

6. Which of the following terms describes what happens in the Alternative Dispute Resolution? Choose the correct answer.



a. prosecution

- ☒ b. mediation
- ☐ c. hearing
- ☐ d. trial

7. Match the words with their appropriate translations.

- a) legislation – zakonodavstvo
- b) claimant – tužitelj
- c) petitioner – predlagatelj
- d) respondent – protustranka
- e) defendant (civil) – tuženik
- f) case law – sudska praksa
- g) defendant (criminal) – optuženik
- h) legislature – zakonodavno tijelo

8. Which of the following powers is exercised by the Executive Branch? Choose the correct answer.

Odaberite jedan odgovor:

- ☐ a. to approve the state budget
- ☐ b. to debate legislative proposals
- ☒ c. to implement development strategies
- ☐ d. to enforce the law

9. True or false?

The executive branch approves the state budget.

- ☐ Točno
- ☒ Netočno